

Osgoode Hall Law School of York University

CRIMINAL LAW – SECTION A (LW/LAW 1040A)
FINAL EXAM

Thursday, December 4, 2025

TOTAL TIME FOR EXAM: 3 HOURS

INSTRUCTIONS:

1. The examination consists of 4 pages, including this cover page.
2. This is an open book examination. You may consult any printed materials without restriction. You may not access the internet or any electronic files during this exam.
3. Your exam answers must include ONLY your own original work, and quotations and references should be properly attributed. (Short-form, in-text citations are sufficient.)
4. Please answer ALL exam questions, including all sub-questions. Please note that the sub-questions are not all equally weighted. As such, you may find that your responses to some sub-questions are lengthier than your responses to others.
5. Suggested time allocations have been indicated for each question. The total suggested time adds up to 3 hours.
6. This exam is worth up to 85 marks in total. The mark allocation is as follows:
 - Part A (Fact Pattern) – available marks: 50
 - Part B (Short Answer) – available marks: 8
 - Part C (Essay) – available marks: 27
7. Your exam should be identified ONLY by your exam number, NOT your name.
8. If you elect to handwrite, be sure to properly fill out the front of every exam booklet you use.

Part A (Fact Pattern)

Total Available Marks: 50

Recommended Time: 100 minutes [1 hour + 40 minutes]

Syd and Lucille live together in Toronto. Syd works at a hospital pharmacy, and Lucille is a cleaner at a hotel. They are both regular cocaine users. They have growing credit-card debt, and they owe money to their drug dealer. After many conversations about how to “get rich quick,” they form a plan. Lucille has learned that a famous teenage singer, Jono, will be staying at the hotel where she works when he is in Toronto for an upcoming concert. They decide to kidnap Jono and hold him for ransom. As their plan takes shape, they discuss how they will deal with any adults they encounter in Jono’s hotel suite. They decide to use a drug that can render people unconscious, which Syd can steal from the hospital pharmacy. Syd steals several doses of an anesthetic called Propofol, which is administered by injection and causes rapid unconsciousness.

A week later, Jono arrives in Toronto and checks into the hotel. Syd and Lucille put their plan into action. Before going to the hotel, they both ingest cocaine, which makes them feel confident and energetic. Lucille is wearing her hotel uniform and is holding a fruit basket. While Syd waits in the hallway, she knocks on the door of Jono’s hotel suite, calling “Room service delivery!” Jono’s security guard, Hugo, opens the door. Lucille presents the fruit basket, and as soon as Hugo reaches for it, she stabs him in the arm with a syringe of Propofol and injects the drug. Hugo loses consciousness and falls to the floor. Lucille then lets Syd into the room. They find Jono and grab him. As Syd is tying Jono’s hands together with rope, he calls to Lucille: “Hey, give that bodyguard another dose. We don’t want him waking up soon.” Lucille calls back, “I think he’s out cold. I don’t want to risk overdosing him.” Syd immediately responds, “Did I ask what you think? Do I need to come over there and slap some sense into you? Do as I say!” Fearful that Syd may become violent, Lucille injects a second dose into Hugo. Syd finishes tying up Jono and tells him to keep quiet and cooperate. Jono nods fearfully. Lucille and Syd bring Jono down a service elevator, sneak him into the hotel parking garage, push him into their waiting van, and drive away.

An hour later, Jono’s manager arrives at the hotel and finds Hugo unconscious. She calls 911 and Hugo is transported to the hospital. Sadly, Hugo dies of Propofol infusion syndrome (“PRIS”), which is a very rare, fatal response to Propofol. An autopsy later shows the PRIS was due to a combination of the high dosage Hugo received and a drug interaction with a prescription medication he was taking at the time. The autopsy further reveals that Hugo may have survived if the hospital had provided a different treatment.

Meanwhile, Syd, Lucille, and Jono continue driving out of the city. By evening, they are in a remote area. They pull over onto the side of the highway, and Syd tells Jono to stay in the van while he and Lucille get out and stretch. It is growing dark, and the temperature is dropping quickly. Syd has been taking more cocaine throughout the evening, causing him to become agitated. Suddenly, he shouts, “This is a stupid plan! But there’s no backing out now that this kid has seen our faces. We should finish him off here and get out while we

still can!” Lucille tells Syd to calm down, but he shoves her, yelling, “Don’t tell me what to do!” Lucille knows from experience that when Syd takes too much cocaine, he can become very aggressive. Fearful, she rushes back to the van, gets into the driver’s seat, and locks the doors, leaving Syd outside. She opens the window a crack and calls, “Syd, just calm down, then we can get going.” Syd responds by shouting, “You let me back in right now or I will break the windows!” He stalks off, then returns with a large rock. He starts to smash the van’s front window. Panicked, Lucille drives forward. She pauses for a moment and calls through the broken window, “Syd, just stay here, okay? I promise I am going to come back for you after you’ve had time to calm down.” Then she drives away.

An hour later, Lucille is still driving when the van runs out of gas. There are no buildings nearby. After waiting in the van with its smashed window for two hours, Lucille and Jono are very cold. The temperature is below freezing. Deciding they need a heat source, Lucille rummages around in the van and finds a bottle of vodka, a box of matches, and a flashlight. She steps outside. Using the flashlight, she locates a wooden billboard on the side of the highway. She walks over, douses the billboard in vodka, and sets it on fire. She and Jono warm themselves. The fire attracts the attention of a passing driver, who calls 911. Soon, the police arrive. Lucille is arrested. Jono is distraught from his ordeal but has no physical injuries. Meanwhile, Syd spends the night waiting on the side of the road. He is eventually found, but he suffers long-term kidney damage from hypothermia (i.e., from extreme cold).

You work for a criminal defence firm. Lucille is your client. (Syd hired a different firm.) Lucille is facing numerous charges, and your supervisor hopes to negotiate a plea deal on her behalf. Your supervisor tells you he is confident the Crown could secure a conviction for kidnapping (s. 279(1) of the *Criminal Code*), so you do not need to analyze that charge. Your supervisor is less certain about the other charges. To help him prepare for plea negotiations, he asks you to assess the likelihood Lucille will be convicted of the following charges if the case goes to trial, including by considering any defences that may apply.

Please assess the likelihood the Crown could secure convictions against Lucille for the following charges, assuming the Crown could prove all the facts set out above:

1. **Overcoming resistance to commission of offence, contrary to s. 246 of the *Criminal Code*.**
2. **Unlawful act manslaughter, contrary to s. 234 of the *Criminal Code*.**
3. **Causing bodily harm by criminal negligence, contrary to s. 221 of the *Criminal Code*.** [Note: “bodily harm” is defined in s. 2 of the *Criminal Code*.]
4. **Arson, damage to property, contrary to s. 434 of the *Criminal Code*.** [Note: “property” is defined in s. 428 of the *Criminal Code*.]

Please take care to explain your analysis fully and to develop your answer with reference to the specific content and materials studied in our course.

Part B (Short Answer)

Total Available Marks: 8 Recommended Time: 20 minutes
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In *Creighton*, McLachlin J. wrote:

It is important to distinguish between criminal law theory, which seeks the ideal of absolute symmetry between *actus reus* and *mens rea*, and the constitutional requirements of the *Charter*. [...] Provided an element of mental fault or moral culpability is present, and provided that it is proportionate to the seriousness and the consequences of the offence charged, the principles of fundamental justice are satisfied.

In different ways, both aggravated assault (*Criminal Code* s. 268(1)) and sexual assault (*Criminal Code* s. 271) are subjective *mens rea* offences that do not require “perfect symmetry.” Explain.

Please take care to explain your analysis fully and to develop your answer with reference to the specific content and materials studied in our course.

Part C (Essay)

Total Available Marks: 27 Recommended Time: 60 minutes [1 hour]
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In our course, we studied several defences that an accused may advance to avoid criminal liability. Arguably, many of these defences are designed to balance two imperatives: (1) ensuring that people are not criminally punished in the absence of fault; and (2) protecting public safety.

Do you think the defences we studied do a good job of balancing these two competing imperatives? In answering this question, please discuss at least three defences studied in our course.

Please take care to explain your analysis fully and to develop your answer with reference to the specific content and materials studied in our course.

- END OF EXAM -

CONGRATULATIONS! HAVE A WONDERFUL WINTER BREAK!